

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TEODULA MARTINEZ,

Petitioner

VS.

JESUS HERNANDEZ,

Respondent

) Case Number: FDV-25-818192

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

PER STIPULATION ON JAN-28-26

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Teodula Martinez (Mother) and Respondent Jesus Hernandez (Father). They share two minor children: Jade Hernandez Martinez (DOB: 02/17/11) and Dylan Hernandez Martinez (DOB: 05/15/14).
- 2) On October 31, 2025, Father filed a Request for Order seeking a modification of the existing child custody and visitation orders. Father requests sole legal and sole physical custody and an order that Father have the minor children in his care during the week and that Mother have them on the weekends.
- 3) On December 1, 2025, the Court referred the parties to Family Court Services (FCS) Mediation on January 28, 2026 and set the matter for return hearing on February 19, 2026.
- 4) On January 28, 2026, the parties entered into a stipulation and order related to child custody and visitation and continued the February 19, 2026 hearing to June 4, 2026. In particular, the parties stipulated to the following orders:

- a. Joint legal and joint physical custody.
- b. Commencing Friday, January 30, 2026, the minor children shall live with Father during the Spring Semester 2025-2026 Academic school year.
- c. Father shall enroll the minor children in school in San Francisco.
- d. Father shall enroll the minor children in medical services and schedule all necessary appointments for the minor children.
- e. Father shall schedule all school evaluations and IEP's.
- f. Father shall ensure the minor children attend school daily.
- g. Mother shall have Spring Break.
- h. If minor children's attendance and academics do not improve, then after the Spring Semester, the minor children shall return to Mother, and all previous orders shall be in full force and effect.
- i. Per mutual agreement, the parties may adjust the schedule to meet the needs of the minor children.

5) The parties attended further FCS mediation on June 1, 2026. They did not reach any further agreements. The parties request the following:

- a. Mother:
 - i. The parties follow the current schedule for one more semester to evaluate how the minor children are doing in school.
 - ii. The month of July for vacation and Father to provide all the transportation.
- b. Father:
 - i. To share transportation for the month of July; Father can drop off the minor children to Mother and she can deliver them back to Father after her vacation time.
 - ii. The minor children remain in San Francisco with Father for the remainder of their academic school years.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in

violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) **The parties are ordered to appear.**